

STATE OF NEW YORK

3251--A

2025-2026 Regular Sessions

IN ASSEMBLY

January 27, 2025

Introduced by M. of A. FORREST, BURDICK, GONZALEZ-ROJAS, SHRESTHA, REYES, MITAYNES, R. CARROLL, KELLES, SIMONE, GALLAGHER, VALDEZ, LEVENBERG, RAGA, MORENO, LEE, WRIGHT -- read once and referred to the Committee on Codes -- recommitted to the Committee on Codes in accordance with Assembly Rule 3, sec. 2 -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the penal law, in relation to decriminalizing sex work; and to repeal certain provisions of such law relating to prostitution (Part A); to amend the criminal procedure law and the civil practice law and rules, in relation to eliminating prior criminal records and making other related changes; and to repeal certain provisions of the criminal procedure law relating to the prosecution of prostitution offenses (Part B); and to amend the multiple dwelling law, the public health law, the real property actions and proceedings law, the real property law, the vehicle and traffic law, and the administrative code of the city of New York, in relation to making conforming changes (Part C)

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. This act shall be known and may be cited as "Cecilia's act
2 for rights in the sex trades".
3 § 2. This act enacts into law major components of legislation relating
4 to the decriminalization of certain prostitution offenses. Each compo-
5 nent of this act is wholly contained within a Part identified as Parts A
6 through C. The effective date for each particular provision contained
7 within such Part is set forth in the last section of such Part. Any
8 provision in any section contained within a Part, including the effec-
9 tive date of the Part, which makes reference to a section "of this act",
10 when used in connection with that particular component, shall be deemed
11 to mean and refer to the corresponding section of the Part in which it

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

LBD03112-05-6

1 is found. Section four of this act sets forth the general effective
2 date of this act.

3 PART A
4 DECRIMINALIZATION

5 Section 1. Section 230.00 of the penal law, as amended by chapter 169
6 of the laws of 1969, is amended to read as follows:

7 § 230.00 Prostitution; definitions.

8 ~~[A person is guilty of prostitution when such person engages or agrees~~
9 ~~or offers to engage in sexual conduct with another person in return for~~
10 ~~a fee.~~

11 ~~Prostitution is a class B Misdemeanor]~~

12 As used in this chapter, the following terms have the following mean-
13 ings:

14 1. "Prostitution" means engaging or agreeing to engage in sexual
15 conduct with another person in return for a fee.

16 2. A person "patronizes a person for prostitution" when: (a) pursuant
17 to a prior understanding, the actor pays a fee to another person as
18 compensation for such other person or a third person having engaged in
19 sexual conduct with the actor; or

20 (b) the person pays or agrees to pay a fee to another person pursuant
21 to an understanding that in return therefor such other person or a third
22 person will engage in sexual conduct with the actor; or

23 (c) the person solicits or requests another person to engage in sexual
24 conduct with the actor in return for a fee.

25 3. "Person who is patronized" means the person with whom the actor
26 engaged in sexual conduct or was to have engaged in sexual conduct
27 pursuant to the understanding, or the person who was solicited or
28 requested by the actor to engage in sexual conduct.

29 4. "School zone" means (a) in or on or within any building, structure,
30 athletic playing field, playground or land contained within the real
31 property boundary line of a public or private elementary, parochial,
32 intermediate, junior high, vocational, or high school, or (b) any public
33 sidewalk, street, parking lot, park, playground or private land, located
34 immediately adjacent to the boundary line of such school.

35 5. (a) "Advance prostitution" a person "advances prostitution" when,
36 acting other than as a person in prostitution or as a patron thereof,
37 and with intent to cause prostitution, the actor directly engages in
38 conduct that facilitates an act or enterprise of prostitution.

39 (b) Conduct by a person under twenty-one years of age shall not
40 constitute advancing prostitution unless the person participated in
41 compulsion by force or intimidation or in sex trafficking, or the person
42 whose prostitution was advanced is under seventeen years of age.

43 6. "Profit from prostitution" a person "profits from prostitution"
44 when, acting other than as a person in prostitution receiving compen-
45 sation for personally rendered prostitution services, the actor accepts
46 or receives money or other property pursuant to an agreement or under-
47 standing with any person whereby the actor participates or is to partic-
48 ipate in the proceeds of prostitution activity.

49 § 2. Section 230.01 of the penal law, as amended by chapter 23 of the
50 laws of 2021, is amended to read as follows:

51 § 230.01 Prostitution; affirmative defense.

52 In any prosecution under [~~section 230.00, section 230.03,~~] section
53 230.19, [~~section 230.20, subdivision 2 of section 230.25,~~] subdivision 2
54 of section 230.30 or section 230.34-a of this article, it is an affirma-

tive defense that the defendant's participation in the offense was a result of having been a victim of compelling prostitution under section 230.33 of this article, a victim of sex trafficking under section 230.34 of this article, a victim of sex trafficking of a child under section 230.34-a of this article or a victim of trafficking in persons under the trafficking victims protection act (United States Code, Title 22, Chapter 78).

§ 3. Section 230.02 of the penal law is REPEALED.

§ 4. Section 230.03 of the penal law is REPEALED.

§ 5. Sections 230.04, 230.05, 230.06, 230.07 and 230.08 of the penal law, sections 230.04, 230.05, 230.06 and 230.07 as amended and section 230.08 as added by chapter 368 of the laws of 2015, are amended to read as follows:

§ 230.04 Patronizing a person for prostitution in the third degree.

A person is guilty of patronizing a person for prostitution in the third degree when ~~[he or she]~~ the actor patronizes a person for prostitution and the person patronized is less than eighteen years old.

Patronizing a person for prostitution in the third degree is a class A misdemeanor.

§ 230.05 Patronizing a person for prostitution in the second degree.

A person is guilty of patronizing a person for prostitution in the second degree when, being eighteen years old or more, ~~[he or she]~~ the actor patronizes a person for prostitution and the person patronized is less than fifteen years old.

Patronizing a person for prostitution in the second degree is a class E felony.

§ 230.06 Patronizing a person for prostitution in the first degree.

A person is guilty of patronizing a person for prostitution in the first degree when:

1. ~~[He or she]~~ The actor patronizes a person for prostitution and the person patronized is less than eleven years old; or

2. Being eighteen years old or more, ~~[he or she]~~ the actor patronizes a person for prostitution and the person patronized is less than thirteen years old.

Patronizing a person for prostitution in the first degree is a class D felony.

§ 230.07 Patronizing a person for prostitution; defense.

In any prosecution for patronizing a person for prostitution in the first ~~[or]~~, second or third degrees or patronizing a person for prostitution in a school zone, it is a defense that the defendant did not have reasonable grounds to believe that the person was less than the age specified.

§ 230.08 Patronizing a person for prostitution in a school zone.

~~[1.]~~ A person is guilty of patronizing a person for prostitution in a school zone when, being twenty-one years old or more, ~~[he or she]~~ the actor patronizes a person for prostitution and the person patronized is less than eighteen years old at a place that ~~[he or she]~~ the actor knows, or reasonably should know, is in a school zone.

~~[2. For purposes of this section, "school zone" shall mean "school zone" as defined in subdivision two of section 230.03 of this article.]~~

Patronizing a person for prostitution in a school zone is a class E felony.

§ 6. Section 230.10 of the penal law, the section heading and the opening paragraph as amended by chapter 368 of the laws of 2015, is amended to read as follows:

1 § 230.10 Prostitution and patronizing a person for prostitution; no
2 defense.

3 In any prosecution for prostitution or patronizing a person for pros-
4 titution, the sex of ~~[the two]~~ any of the parties or prospective parties
5 to the sexual conduct engaged in, contemplated or solicited is immateri-
6 al~~[, and it is no defense that:~~

7 ~~1. Such persons were of the same sex; or~~

8 ~~2. The person who received, agreed to receive or solicited a fee was a~~
9 ~~male and the person who paid or agreed or offered to pay such fee was a~~
10 ~~female].~~

11 § 7. Sections 230.11, 230.12 and 230.13 of the penal law, as added by
12 chapter 368 of the laws of 2015, the first undesignated paragraph of
13 section 230.11, the first undesignated paragraph of section 230.12, and
14 the first undesignated paragraph of section 230.13 as amended by chapter
15 777 of the laws of 2023, are amended to read as follows:

16 § 230.11 Aggravated patronizing a minor for prostitution in the third
17 degree.

18 A person is guilty of aggravated patronizing a minor for prostitution
19 in the third degree when, being twenty-one years old or more, ~~[he or~~
20 ~~she]~~ the actor patronizes a person for prostitution and the person
21 patronized is less than seventeen years old and the person guilty of
22 patronizing engages in vaginal sexual contact, oral sexual contact, anal
23 sexual contact, or aggravated sexual contact as those terms are defined
24 in section 130.00 of this part, with the person patronized.

25 Aggravated patronizing a minor for prostitution in the third degree is
26 a class E felony.

27 § 230.12 Aggravated patronizing a minor for prostitution in the second
28 degree.

29 A person is guilty of aggravated patronizing a minor for prostitution
30 in the second degree when, being eighteen years old or more, ~~[he or she]~~
31 the actor patronizes a person for prostitution and the person patronized
32 is less than fifteen years old and the person guilty of patronizing
33 engages in vaginal sexual contact, oral sexual contact, anal sexual
34 contact, or aggravated sexual contact as those terms are defined in
35 section 130.00 of this part, with the person patronized.

36 Aggravated patronizing a minor for prostitution in the second degree
37 is a class D felony.

38 § 230.13 Aggravated patronizing a minor for prostitution in the first
39 degree.

40 A person is guilty of aggravated patronizing a minor for prostitution
41 in the first degree when ~~[he or she]~~ the actor patronizes a person for
42 prostitution and the person patronized is less than eleven years old, or
43 being eighteen years old or more, ~~[he or she]~~ the actor patronizes a
44 person for prostitution and the person patronized is less than thirteen
45 years old, and the person guilty of patronizing engages in vaginal sexu-
46 al contact, oral sexual contact, anal sexual contact, or aggravated
47 sexual contact as those terms are defined in section 130.00 of this
48 part, with the person patronized.

49 Aggravated patronizing a minor for prostitution in the first degree is
50 a class B felony.

51 § 8. Section 230.15 of the penal law is REPEALED.

52 § 9. Section 230.19 of the penal law, as added by chapter 191 of the
53 laws of 2011, subdivision 1 as amended by chapter 368 of the laws of
54 2015, is amended to read as follows:

55 § 230.19 Promoting prostitution in a school zone.

1 ~~[1.]~~ A person is guilty of promoting prostitution in a school zone
2 when, being nineteen years old or more, ~~[he or she]~~ the actor knowingly
3 advances or profits from prostitution that ~~[he or she]~~ the actor knows
4 or reasonably should know is or will be committed ~~[in violation of~~
5 ~~section 230.03 of this article]~~ in a school zone during the hours that
6 school is in session.

7 ~~[2. For purposes of this section, "school zone" shall mean "school~~
8 ~~zone" as defined in subdivision two of section 230.03 of this article.]~~

9 Promoting prostitution in a school zone is a class E felony.

10 § 10. Sections 230.20 and 230.25 of the penal law are REPEALED.

11 § 11. Section 230.30 of the penal law, as amended by chapter 368 of
12 the laws of 2015, is amended to read as follows:

13 § 230.30 Promoting prostitution in the second degree.

14 A person is guilty of promoting prostitution in the second degree when
15 ~~[he or she]~~ the actor knowingly:

16 1. Advances prostitution by compelling a person by force or intim-
17 idation to engage in prostitution, or profits from such coercive conduct
18 by another; or

19 2. Advances or profits from prostitution of a person less than eigh-
20 teen years old.

21 Promoting prostitution in the second degree is a class C felony.

22 § 12. Section 230.32 of the penal law, as added by chapter 627 of the
23 laws of 1978, the opening paragraph and subdivisions 1 and 2 as amended
24 by chapter 368 of the laws of 2015, is amended to read as follows:

25 § 230.32 Promoting prostitution in the first degree.

26 A person is guilty of promoting prostitution in the first degree when
27 ~~[he or she]~~ the actor:

28 1. knowingly advances or profits from prostitution of a person less
29 than thirteen years old; or

30 2. being twenty-one years old or more, ~~[he or she]~~ the actor knowingly
31 advances or profits from prostitution of a person less than fifteen
32 years old.

33 Promoting prostitution in the first degree is a class B felony.

34 § 13. Section 230.33 of the penal law, as amended by chapter 368 of
35 the laws of 2015, is amended to read as follows:

36 § 230.33 Compelling prostitution.

37 A person is guilty of compelling prostitution when, being eighteen
38 years old or more, ~~[he or she]~~ the actor knowingly advances prostitution
39 by compelling a person less than eighteen years old, by force or intim-
40 idation, to engage in prostitution.

41 Compelling prostitution is a class B felony.

42 § 14. The opening paragraph of section 230.34 of the penal law, as
43 added by chapter 74 of the laws of 2007, is amended to read as follows:

44 A person is guilty of sex trafficking if ~~[he or she]~~ the actor inten-
45 tionally advances or profits from prostitution by:

46 § 15. Section 230.34-a of the penal law, as added by chapter 189 of
47 the laws of 2018, is amended to read as follows:

48 § 230.34-a Sex trafficking of a child.

49 ~~[1.]~~ A person is guilty of sex trafficking of a child when ~~[he or she]~~
50 the actor, being twenty-one years old or more, intentionally advances or
51 profits from prostitution of another person and such person is a child
52 less than eighteen years old. Knowledge by the defendant of the age of
53 such child is not an element of this offense and it is not a defense to
54 a prosecution therefor that the defendant did not know the age of the
55 child or believed such age to be eighteen or over.

56 ~~[2. For purposes of this section:~~

~~(a) A person "advances prostitution" when, acting other than as a person in prostitution or as a patron thereof, and with intent to cause prostitution, he or she directly engages in conduct that facilitates an act or enterprise of prostitution.~~

~~(b) A person "profits from prostitution" when, acting other than as a person in prostitution receiving compensation for personally rendered prostitution services, and with intent to facilitate prostitution, he or she accepts or receives money or other property pursuant to an agreement or understanding with any person whereby he or she participates in the proceeds of prostitution activity.]~~

Sex trafficking of a child is a class B felony.

§ 16. Section 230.35 of the penal law, as amended by chapter 368 of the laws of 2015, is amended to read as follows:

§ 230.35 Promoting or compelling prostitution; accomplice.

In a prosecution for promoting prostitution or compelling prostitution, a person [~~less than eighteen years old~~] from whose prostitution activity another person is alleged to have advanced or attempted to advance or profited or attempted to profit shall not be deemed to be an accomplice.

§ 17. Section 230.40 of the penal law is REPEALED.

§ 18. This act shall take effect immediately.

PART B

ELIMINATING PRIOR CRIMINAL RECORDS AND OTHER RELATED PROVISIONS

Section 1. Paragraph (k) of subdivision 3 of section 160.50 of the criminal procedure law, as amended by chapter 92 of the laws of 2021, is amended to read as follows:

(k) (i) The conviction was for a violation of article two hundred twenty or section 240.36 of the penal law prior to the effective date of former article two hundred twenty-one of the penal law, and the sole controlled substance involved was marihuana and the conviction was only for a misdemeanor and/or violation; or

(ii) the conviction is for an offense defined in section 221.05 or 221.10 of the penal law prior to the effective date of chapter one hundred thirty-two of the laws of two thousand nineteen; or

(iii) the conviction is for an offense defined in former section 221.05, 221.10, 221.15, 221.20, 221.35, or 221.40 of the penal law; or

(iv) the conviction was for an offense defined in former section 240.37 of the penal law; or

(v) the conviction was for a violation of section 220.03 or 220.06 of the penal law prior to the effective date of the chapter ninety-two of the laws of two thousand twenty-one [~~that amended this paragraph~~], and the sole controlled substance involved was concentrated cannabis; or

(vi) the conviction was for an offense defined in section 222.10, 222.15, 222.25 or 222.45 of the penal law[~~-~~]; or

(vii) the conviction was for a violation of penal law section 230.00, 230.03, 230.20, 230.25, or 230.40 as in effect prior to the effective date of part A of the chapter of the laws of two thousand twenty-six that amended this section; or

(viii) an order pursuant to subdivision six of this section was entered.

No defendant shall be required or permitted to waive eligibility for sealing or expungement pursuant to this section as part of a plea of guilty, sentence or any agreement related to a conviction [~~for a violation of section 222.10, 222.15, 222.25 or 222.45 of the penal law~~]

1 or disposition and any such waiver shall be deemed void and wholly unen-
2 forceable.

3 § 2. Paragraph (a) of subdivision 5 of section 160.50 of the criminal
4 procedure law, as amended by chapter 132 of the laws of 2019, is amended
5 to read as follows:

6 (a) Expungement of certain [~~marihuana-related~~] records. A conviction
7 for an offense described in paragraph (k) of subdivision three of this
8 section shall, on and after the effective date of this paragraph, in
9 accordance with the provisions of this paragraph, be vacated and
10 dismissed, and all records of such conviction or convictions and related
11 to such conviction or convictions shall be expunged, as described in
12 subdivision forty-five of section 1.20 of this chapter, and the matter
13 shall be considered terminated in favor of the accused and deemed a
14 nullity, having been rendered by this paragraph legally invalid. All
15 such records for an offense described in this paragraph where the
16 conviction was entered on or before the effective date of the chapter of
17 the laws of [~~2019~~] two thousand twenty-six that amended this paragraph
18 shall be expunged promptly and, in any event, no later than one year
19 after such effective date.

20 § 3. Subparagraph (i) of paragraph (b) of subdivision 5 of section
21 160.50 of the criminal procedure law, as amended by chapter 132 of the
22 laws of 2019, is amended and a new subdivision 6 is added to read as
23 follows:

24 (i) the chief administrator of the courts shall promptly notify the
25 commissioner of the division of criminal justice services and the heads
26 of all appropriate police departments, district attorney's offices and
27 other law enforcement agencies of all convictions that have been vacated
28 and dismissed pursuant to paragraph (a) of this subdivision and that all
29 records related to such convictions shall be expunged and the matter
30 shall be considered terminated in favor of the accused and deemed a
31 nullity, having been rendered legally invalid. Upon receipt of notifica-
32 tion of such vacatur, dismissal and expungement, all records relating to
33 such conviction or convictions, or the criminal action or proceeding, as
34 the case may be, shall be marked as expunged by conspicuously indicating
35 on the face of the record and on each page or at the beginning of the
36 digitized file of the record that the record has been designated as
37 expunged and, for certificates of disposition, omitting former disposi-
38 tion information that predates expungement, and replacing it with infor-
39 mation about the criminal action or proceeding's termination in favor of
40 the accused, dismissal, and sealing, and the date of such termination
41 and dismissal. Upon the written request of the individual whose case
42 has been expunged or their designated agent, such records shall be
43 destroyed. Such records and papers shall not be made available to any
44 person, except the individual whose case has been expunged or such
45 person's designated agent; and

46 6. A person convicted under article two hundred thirty of the penal
47 law for what no longer constitutes an offense on or after the effective
48 date of part A of the chapter of the laws of two thousand twenty-six
49 that added this subdivision may upon motion apply to the court in which
50 such conviction occurred, upon not less than twenty days notice to the
51 district attorney, for an order finding that the criminal action or
52 proceeding was terminated in favor of such person, and such order shall
53 be granted unless the district attorney demonstrates to the satisfaction
54 of the court that the interests of justice require otherwise.

§ 4. Paragraph (k) of subdivision 1 of section 440.10 of the criminal procedure law, as amended by chapter 92 of the laws of 2021, is amended to read as follows:

(k) The judgment occurred prior to the effective date of part A of the chapter of the laws of two thousand ~~twenty-one~~ twenty-six that amended this paragraph and is a conviction for an offense as defined in ~~[subparagraphs]~~ subparagraph (i), (ii), (iii) ~~[or]~~, (iv), or (vii) of paragraph (k) of subdivision three of section 160.50 of this part, in which case the court shall presume that a conviction by plea for the aforementioned offenses was not knowing, voluntary and intelligent if it has severe or ongoing consequences, including but not limited to potential or actual immigration consequences, and shall presume that a conviction by verdict for the aforementioned offenses constitutes cruel and unusual punishment under section five of article one of the state constitution, based on those consequences. The people may rebut these presumptions.

§ 5. Subdivision 5 of section 1310 of the civil practice law and rules, as added by chapter 669 of the laws of 1984, is amended to read as follows:

5. "Post-conviction forfeiture crime" means any felony defined in the penal law or any other chapter of the consolidated laws of the state. However, this shall not include any felony under article two hundred thirty of the penal law in effect prior to the effective date of a chapter of the laws of two thousand twenty-six which amended this subdivision, unless it was also a felony under that article on or after that date.

§ 6. Section 60.47 of the criminal procedure law is REPEALED.

§ 7. Subdivision 4 of section 170.30 of the criminal procedure law is REPEALED.

§ 8. Section 170.80 of the criminal procedure law is REPEALED.

§ 9. Subdivision 2 of section 420.35 of the criminal procedure law, as amended by chapter 23 of the laws of 2021, is amended to read as follows:

2. Except as provided in this subdivision or subdivision two-a of this section, under no circumstances shall the mandatory surcharge, sex offender registration fee, DNA databank fee or the crime victim assistance fee be waived. A court shall waive any mandatory surcharge, DNA databank fee and crime victim assistance fee when: (i) the defendant is convicted of ~~[prostitution under section 230.00 of the penal law; (ii) the defendant is convicted of a violation in the event such conviction is in lieu of a plea to or conviction for prostitution under section 230.00 of the penal law; (iii)]~~ a violation of article two hundred thirty or former section 240.37 of the penal law, as in effect prior to the effective date of a chapter of the laws of two thousand twenty-six which amended this subdivision, unless the violation is an offense under law in effect on and after that effective date; or (ii) the court finds that a defendant is a victim of sex trafficking under section 230.34 of the penal law, sex trafficking of a child under section 230.34-a of the penal law, or ~~[a victim of]~~ trafficking in persons under the trafficking victims protection act (United States Code, Title 22, Chapter 78) ~~[-; or (iv) the court finds that the defendant is a victim of sex trafficking of a child under section 230.34-a of the penal law]~~.

§ 10. Subdivision 4 of section 720.15 of the criminal procedure law is REPEALED.

§ 11. Subdivision 1 of section 720.35 of the criminal procedure law, as amended by chapter 23 of the laws of 2021, is amended to read as follows:

1 1. A youthful offender adjudication is not a judgment of conviction
2 for a crime or any other offense, and does not operate as a disquali-
3 fication of any person so adjudged to hold public office or public
4 employment or to receive any license granted by public authority but
5 shall be deemed a conviction only for the purposes of transfer of super-
6 vision and custody pursuant to section two hundred fifty-nine-m of the
7 executive law. [~~A defendant for whom a youthful offender adjudication~~
8 ~~was substituted, who was originally charged with prostitution as defined~~
9 ~~in section 230.00 of the penal law, shall be deemed a "sexually~~
10 ~~exploited child" as defined in subdivision one of section four hundred~~
11 ~~forty-seven a of the social services law and therefore shall not be~~
12 ~~considered an adult for purposes related to the charges in the youthful~~
13 ~~offender proceeding or a proceeding under section 170.80 of this chap-~~
14 ~~ter.~~]

15 § 12. The office of court administration shall establish and make
16 available all necessary forms for proceedings under this act no later
17 than sixty days following the effective date of this section.

18 § 13. This act shall take effect on the thirtieth day after it shall
19 have become a law.

20 PART C
21 OTHER CONFORMING CHANGES

22 Section 1. Subdivision 1 of section 12 of the multiple dwelling law is
23 amended to read as follows:

24 1. It shall be unlawful to use any multiple dwelling or any part of
25 the lot or premises thereof for the purpose of criminal conduct related
26 to prostitution [~~or assignation of any description~~] under article two
27 hundred thirty of the penal law. This subdivision shall only apply to
28 conduct involving prostitution activity in violation of article two
29 hundred thirty of the penal law on or after the effective date of a
30 chapter of the laws of two thousand twenty-six that amended this subdi-
31 vision.

32 § 2. Sections 351 and 352 of the multiple dwelling law, section 352 as
33 amended by chapter 310 of the laws of 1962, are amended to read as
34 follows:

35 § 351. Lien. A multiple dwelling shall be subject to a penalty of one
36 thousand dollars if it or any part of it shall be used as a house of
37 prostitution [~~or assignation~~] in violation of article two hundred thirty
38 of the penal law with the permission of the owner, and such penalty
39 shall be a lien upon the dwelling and lot upon which it is situated.
40 This section shall only apply to conduct involving prostitution activity
41 in violation of article two hundred thirty of the penal law on or after
42 the effective date of a chapter of the laws of two thousand twenty-six
43 that amended this section.

44 § 352. Recovery of premises. If a multiple dwelling, or any part
45 thereof, shall be used as a house of prostitution [~~or assignation~~] in
46 violation of article two hundred thirty of the penal law with the
47 permission of the lessee or [~~his~~] the lessee's agent, the lease shall be
48 terminable at the election of the lessor, and the owner shall be enti-
49 tled to recover possession of said premises by summary proceedings.
50 This section shall only apply to conduct involving prostitution activity
51 in violation of article two hundred thirty of the penal law on or after
52 the effective date of a chapter of the laws of two thousand twenty-six
53 that amended this section.

§ 3. Section 2320 of the public health law is amended to read as follows:

§ 2320. Houses of prostitution; equipment; nuisance. 1. Whoever shall erect, establish, continue, maintain, use, own, or lease any building, erection, or place used for the purpose of ~~[lowdness, assignation, or]~~ prostitution activity in violation of article two hundred thirty of the penal law is guilty of maintaining a nuisance.

2. The building, erection, or place, or the ground itself, in or upon which any ~~[lowdness, assignation, or]~~ prostitution activity in violation of article two hundred thirty of the penal law is conducted, permitted, or carried on, continued, or exists, and the furniture, fixtures, musical instruments, and movable property used in conducting or maintaining such nuisance, are hereby declared to be a nuisance and shall be enjoined and abated as hereafter provided.

3. This article shall only apply to conduct involving prostitution activity in violation of article two hundred thirty of the penal law on or after the effective date of this subdivision.

§ 4. Subdivision 5 of section 711 of the real property actions and proceedings law, as added by chapter 312 of the laws of 1962, is amended to read as follows:

5. The premises, or any part thereof, are used or occupied ~~[as a bawdy house, or house or place of assignation for lewd persons, or]~~ for purposes of prostitution activity in violation of article two hundred thirty of the penal law, or for any illegal trade or manufacture, or other illegal business. As used in this subdivision, "prostitution activity" shall only mean conduct in violation of article two hundred thirty of the penal law on or after the effective date of a chapter of the laws of two thousand twenty-six that amended this subdivision.

§ 5. Subdivisions 1 and 2 of section 715 of the real property actions and proceedings law, subdivision 1 as amended by chapter 555 of the laws of 1978, subdivision 2 as amended by chapter 368 of the laws of 2015, are amended to read as follows:

1. An owner or tenant, including a tenant of one or more rooms of an apartment house, tenement house or multiple dwelling, of any premises within two hundred feet from other demised real property ~~[used or occupied in whole or in part as a bawdy house, or house or place of assignation for lewd persons, or]~~ for purposes of prostitution activity in violation of article two hundred thirty of the penal law, or for any illegal trade, business or manufacture, or any domestic corporation organized for the suppression of vice, subject to or which submits to visitation by the state department of social services and possesses a certificate from such department of such fact and of conformity with regulations of the department, or any duly authorized enforcement agency of the state or of a subdivision thereof, under a duty to enforce the provisions of the penal law or of any state or local law, ordinance, code, rule or regulation relating to buildings, may serve personally upon the owner or landlord of the premises so used or occupied, or upon ~~[his]~~ the lessee's agent, a written notice requiring the owner or landlord to make an application for the removal of the person so using or occupying the same. If the owner or landlord or ~~[his]~~ the lessee's agent does not make such application within five days thereafter; or, having made it, does not in good faith diligently prosecute it, the person, corporation or enforcement agency giving the notice may bring a proceeding under this article for such removal as though the petitioner were the owner or landlord of the premises, and shall have precedence over any similar proceeding thereafter brought by such owner or landlord or

1 to one theretofore brought by [~~him~~] such owner or landlord and not prosecuted diligently and in good faith. [~~Proof of the ill repute of the demised premises or of the inmates thereof or of those resorting thereto shall constitute presumptive evidence of the unlawful use of the demised premises required to be stated in the petition for removal.~~] Both the person in possession of the property and the owner or landlord shall be made respondents in the proceeding. As used in this subdivision, "prostitution activity" shall only mean conduct in violation of article two hundred thirty of the penal law on or after the effective date of a chapter of the laws of two thousand twenty-six that amended this subdivision.

12 2. For purposes of this section, two or more convictions of any person or persons had, within a period of one year, for any of the offenses described in section [~~230.00,~~] 230.05, 230.06, 230.11, 230.12, 230.13, [~~230.20, 230.25,~~] 230.30, or 230.32 [~~or 230.40~~] of the penal law arising out of conduct engaged in at the same real property consisting of a dwelling as that term is defined in subdivision four of section four of the multiple dwelling law shall be presumptive evidence of conduct constituting use of the premises for purposes of prostitution activity. However, this subdivision shall only apply to an offense under article two hundred thirty of the penal law in effect on or after the effective date of a chapter of the laws of two thousand twenty-six that amended this subdivision.

24 § 6. Subdivision 3 of section 231 of the real property law, as amended by chapter 368 of the laws of 2015, is amended to read as follows:

26 3. For the purposes of this section, two or more convictions of any person or persons had, within a period of one year, for any of the offenses described in section [~~230.00,~~] 230.05, 230.06, 230.11, 230.12, 230.13, [~~230.20, 230.25,~~] 230.30, or 230.32 [~~or 230.40~~] of the penal law arising out of conduct engaged in at the same premises consisting of a dwelling as that term is defined in subdivision four of section four of the multiple dwelling law shall be presumptive evidence of unlawful use of such premises and of the owners knowledge of the same. However, this subdivision shall only apply to an offense under article two hundred thirty of the penal law in effect on or after the effective date of a chapter of the laws of two thousand twenty-six that amended this subdivision.

38 § 7. Paragraph 3 of subdivision b of section 233 of the real property law, as amended by chapter 566 of the laws of 1996, is amended to read as follows:

39 3. The premises, or any part thereof, are used or occupied [~~as a bawdy house, or house or place of assignation for lewd purposes or~~] for purposes of prostitution activity in violation of article two hundred thirty of the penal law, or for any illegal trade or business. As used in this paragraph, "prostitution activity" shall only mean conduct in violation of article two hundred thirty of the penal law on or after the effective date of a chapter of the laws of two thousand twenty-six that amended this paragraph.

49 § 8. Paragraphs (b) and (c) of subdivision 4 of section 509-cc of the vehicle and traffic law, paragraph (b) as amended by chapter 23 of the laws of 2024, paragraph (c) as amended by chapter 92 of the laws of 2021, are amended to read as follows:

53 (b) The offenses referred to in subparagraph (ii) of paragraph (a) of subdivision one and paragraph (b) of subdivision two of this section that result in permanent disqualification shall include a conviction under sections 100.13, 105.15, 105.17, 115.08, 120.12, 120.70, 125.10,

1 125.11, former section 130.40, sections 130.53, 130.60, 130.65-a,
2 135.20, 160.15, 220.18, 220.21, 220.39, 220.41, 220.43, 220.44,
3 ~~[230.25]~~ 260.00, 265.04 of the penal law or an attempt to commit any of
4 the aforesaid offenses under section 110.00 of the penal law, or any
5 offenses committed under a former section of the penal law which would
6 constitute violations of the aforesaid sections of the penal law, or any
7 offenses committed outside this state which would constitute violations
8 of the aforesaid sections of the penal law.

9 (c) The offenses referred to in subparagraph (i) of paragraph (b) of
10 subdivision one and subparagraph (i) of paragraph (c) of subdivision two
11 of this section that result in disqualification for a period of five
12 years shall include a conviction under sections 100.10, 105.13, 115.05,
13 120.03, 120.04, 120.04-a, 120.05, 120.10, 120.25, 121.12, 121.13,
14 ~~[125.40, 125.45]~~ 130.20, 130.25, 130.52, 130.55, 135.10, 135.55,
15 140.17, 140.25, 140.30, 145.12, 150.10, 150.15, 160.05, 160.10, 220.06,
16 220.09, 220.16, 220.31, 220.34, 220.60, 220.65, subdivision two of
17 section 222.50, subdivision two of section 222.55, ~~[230.00]~~ 230.05,
18 230.06, 230.11, 230.12, 230.13, 230.19, ~~[230.20]~~ 235.05, 235.06,
19 235.07, 235.21, 240.06, 245.00, 260.10, subdivision two of section
20 260.20 and sections 260.25, 265.02, 265.03, 265.08, 265.09, 265.10,
21 265.12, 265.35 of the penal law or an attempt to commit any of the afor-
22 esaid offenses under section 110.00 of the penal law, or any similar
23 offenses committed under a former section of the penal law, or any
24 offenses committed under a former section of the penal law which would
25 constitute violations of the aforesaid sections of the penal law, or any
26 offenses committed outside this state which would constitute violations
27 of the aforesaid sections of the penal law.

28 § 9. Subdivisions 1 and 2 of section 510-d of the vehicle and traffic
29 law, as amended by chapter 189 of the laws of 2018, are amended to read
30 as follows:

31 1. A class E driver's license shall be suspended by the commissioner
32 for a period of one year where the holder is convicted of a violation of
33 section ~~[230.20, 230.25]~~ 230.30, 230.32, 230.34, or 230.34-a ~~[or~~
34 ~~230.40]~~ of the penal law and the holder used a for hire motor vehicle to
35 commit such crime.

36 2. A class E driver's license may be revoked by the commissioner when
37 the holder, who had ~~[his or her]~~ their driver's license suspended under
38 subdivision one of this section within the last ten years, is convicted
39 of a second violation of section ~~[230.20, 230.25]~~ 230.30, 230.32,
40 230.34, or 230.34-a ~~[or 230.40]~~ of the penal law and the holder used a
41 for hire motor vehicle to commit such crime.

42 § 10. Subdivision (a) of section 7-703 of the administrative code of
43 the city of New York is amended to read as follows:

44 (a) Any building, erection or place, including one- or two-family
45 dwellings, used for the purpose of prostitution ~~[as defined in section~~
46 ~~230.00]~~ activity in violation of article two hundred thirty of the penal
47 law. Two or more criminal convictions of persons for ~~[acts of]~~ prostitu-
48 tion activity in violation of article two hundred thirty of the penal
49 law in the building, erection or place, including one- or two-family
50 dwellings, within the one-year period preceding the commencement of an
51 action under this chapter, shall be presumptive evidence that the build-
52 ing, erection or place, including one- or two-family dwellings, is a
53 public nuisance. In any action under this subdivision, evidence of the
54 common fame and general reputation of the building, erection or place,
55 including one- or two-family dwellings, of the ~~[inmates]~~ incarcerated
56 individuals or occupants thereof, or of those resorting thereto, shall

1 be competent evidence to prove the existence of the public nuisance. If
2 evidence of the general reputation of the building, erection or place,
3 including one- or two-family dwellings, or of the ~~[inmates]~~ incarcerated
4 individuals or occupants thereof, is sufficient to establish the exist-
5 ence of the public nuisance, it shall be prima facie evidence of know-
6 ledge thereof and acquiescence and participation therein and responsi-
7 bility for the nuisance, on the part of the owners, lessors, lessees and
8 all those in possession of or having charge of, as agent or otherwise,
9 or having any interest in any form in the property, real or personal,
10 used in conducting or maintaining the public nuisance. As used in this
11 subdivision, "prostitution activity" shall only mean conduct in
12 violation of article two hundred thirty of the penal law on or after the
13 effective date of a chapter of the laws of two thousand twenty-six that
14 amended this subdivision;

15 § 11. Subdivision f of section 20-247 of the administrative code of
16 the city of New York is amended to read as follows:

17 f. It shall be unlawful for any licensee to guide or direct any person
18 to ~~[a place of ill repute, house of ill fame or assignation, or to any~~
19 ~~house or place of amusement kept for immoral purposes, or to]~~ any place
20 resorted to for the purpose of prostitution activity in violation of
21 article two hundred thirty of the penal law or gambling. It shall be
22 unlawful for any such licensee to impart any information as to the
23 location or address of any such houses or places, or to solicit the
24 patronage of any person or persons for any hotel, lodging house or
25 boarding house or place of temporary or permanent abode, or for any
26 place where refreshments are served or amusement of any type provided.
27 As used in this subdivision, "prostitution activity" shall only mean
28 conduct in violation of article two hundred thirty of the penal law on
29 or after the effective date of a chapter of the laws of two thousand
30 twenty-six that amended this subdivision.

31 § 12. This act shall take effect on the thirtieth day after it shall
32 have become a law.

33 § 3. Severability clause. If any clause, sentence, paragraph, subdivi-
34 sion, section or part of this act shall be adjudged by a court of compo-
35 nent jurisdiction to be invalid, such judgment shall not affect, impair
36 or invalidate the remainder thereof, but shall be confined in its opera-
37 tion to the clause, sentence, paragraph, subdivision, section or part
38 thereof directly involved in the controversy in which such judgment
39 shall have been rendered. It is hereby declared to be the intent of the
40 legislature that this act would have been enacted even if such invalid
41 provisions had not been included herein.

42 § 4. This act shall take effect immediately; provided, however, that
43 the applicable effective date of Parts A through C of this act shall be
44 as specifically set forth in the last section of such Parts.